

GORSUCH, J., dissenting

“twice . . . in jeopardy of life or limb” for “the same offence.” Really?

II

Without meaningful support in the text of the Double Jeopardy Clause, the government insists that the separate sovereigns exception is at least compelled by the structure of our Constitution. On its view, adopted by the Court today, allowing the federal and state governments to punish the same defendant for the same conduct “honors the substantive differences between the interests that two sovereigns can have” in our federal system. *Ante*, at 685.

But this argument errs from the outset. The Court seems to assume that sovereignty in this country belongs to the state and federal governments, much as it once belonged to the King of England. But as Chief Justice Marshall explained, “[t]he government of the Union . . . is emphatically, and truly, a government of the people,” and all sovereignty “emanates from them.”²¹ Alexander Hamilton put the point this way: “[T]he national and State systems are to be regarded” not as different sovereigns foreign to one another but “as ONE WHOLE.”²² Under our Constitution, the federal and state governments are but two expressions of a single and sovereign people.

This principle resonates throughout our history and law. State courts that refused to entertain federal causes of action found little sympathy when attempting the very separate sovereigns theory underlying today’s decision.²³ In time, too, it became clear that federal courts may decide state-law issues, and state courts may decide federal questions.²⁴ Even in the criminal context, this Court has upheld removal of some state criminal actions to federal court.²⁵

²¹ *McCulloch v. Maryland*, 4 Wheat. 316, 404–405 (1819).

²² The Federalist No. 82, p. 494 (C. Rossiter ed. 1961).

²³ See *Testa v. Katt*, 330 U. S. 386 (1947).

²⁴ *Clafflin v. Houseman*, 93 U. S. 130 (1876).

²⁵ See *Tennessee v. Davis*, 100 U. S. 257 (1880).